

24VECV03087 24VECV03087

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Tentative Ruling

Gharibyan v. Sahakyan, Case no. 24VECV03087

Hearing date September 9, 2026

Defendant

Lyft's Motion for Summary Judgment

Plaintiff

Gharibyan sues defendants Sahakyan and Lyft for injuries arising out of a motor vehicle accident. Plaintiff alleges Sahakyan was driving for Lyft when Sahakyan's vehicle negligently struck plaintiff's vehicle. Lyft moves for summary judgment on plaintiff's sole cause of action against it for vicarious liability. Plaintiff opposes.

Lyft

offers the declaration of Safety Senior Specialist Simmons. Plaintiff objects. Obj. 1-5 OVERRULED. Plaintiff offers evidence in opposition. Lyft objects. Obj. 1-4 OVERRULED.

A

motion for summary judgement must be granted if there is no triable issue of material fact as to each cause of action. Code Civ. Proc. §437c(a), (c); Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 843. To obtain summary judgment, moving party must prove each element of the cause of action. Harris v. Rudin, Richman & Appel (2002) 95 Cal.App.4th 1332, as modified Mar. 5, 2002. A defendant can do so by showing plaintiff cannot establish one or

more elements of the claim or there is a complete defense to that claim. Aguilar, supra, at 853. Once moving party meets this burden, the burden shifts to responding party to show a triable issue of material fact as to that cause of action or a defense thereto. Harris, supra, at 1337.

Plaintiff

asserts a single claim against Lyft for vicarious liability for Sahakyan's conduct. An agent or employee relationship is required for vicarious liability. *Ralphs Grocery Co. v. Victory Consultants, Inc.* (2017) 17 Cal.App.5th 245, 262. Lyft argues Prop. 22 and Bus. & Prof. Code §7451 establish as a matter of law that Sahakyan cannot be considered an agent or employee for purposes of vicarious liability. Prop. 22 codified the "Protect App-Based Drivers and Services Act." See Bus. & Prof. Code §7448, et seq., under which app-based drivers are independent contractors, not "employees or agents," if the driver's relationship with the transportation network company, like Lyft, satisfies certain statutory requirements, including not imposing shifts and schedules on drivers, and allowing them to drive on other rideshare company apps or work in other industries. Bus. & Prof. Code §7451.

Lyft

is a "transportation network company" ("TNC") operating under authority granted by the Public Utilities Commission. See Pub. Util. Code, § 5431(c) [defining "transportation network company" as "a corporation . . . operating in California that provides prearranged transportation services for compensation using an online-enabled application or platform to connect passengers with drivers using a personal vehicle."]; see *City and County of San Francisco v. Uber Techs., Inc.* (2019) 36 Cal.App.5th 66, 71. Lyft provides a digital platform (the "Lyft Platform") that connects app-based drivers using their personal vehicles with passengers seeking rides; Lyft drivers accept rides at their discretion. SSMF 1.

Sahakyan

applied to use the Lyft Platform as an app-based driver on 5/20/22. SSMF 2. When Sahakyan applied, he submitted proof of valid California driver's license, vehicle inspection form and automobile insurance. SSMF 3. Lyft conducted a criminal background check and found no disqualifying incidents. SSMF 4-5. Sahakyan and Lyft entered into a written contract stating Sahakyan was an app-based independent contractor and Lyft had no right to direct or control Sahakyan. SSMF 6-7. The undisputed facts presented by Lyft demonstrate Sahakyan was an app-based independent contractor, and Lyft complied with its obligations

as a TNC. The burden shifts to plaintiff to show a triable issue of material fact.

Plaintiff

argues Lyft fails to address its independent liability under Public Utilities Code §5354. Though this theory of liability was not pled in the operative complaint, the court will address this argument on its merits. By its terms, section 5354 attributes to a charter-party carrier the acts and omissions of any person providing the authorized service with the carrier's approval or consent. *Id.* Plaintiff's reliance on section 5354 is misplaced. Bus. & Prof. Code §7451 states: "[n]otwithstanding any other provision of law . . . an app-based driver is an independent contractor and not an employee or agent." *Id.* The phrase "notwithstanding any other provision of law" is a well-established phrase in California law expressing the Legislature's intent that "the specific statute control despite the existence of other law which might otherwise govern." *Klajic v. Castaic Lake Water Agency* (2004) 121 Cal.App.4th 5, 12-13. Courts interpret ballot initiatives under the rules governing statutory construction. *People v. Park* (2013) 56 Cal.4th 782, 796.

Plaintiff

argues Prop. 22 and section 7451 are limited to labor law disputes. This argument is contradicted by the plain language of section 7451, which states section 7451 applies notwithstanding any other provision of law, not merely labor law. *Id.* Section 7451 states it includes "but [is] not limited to, the Labor Code." *Id.* Plaintiff's reliance on the Voter Information Guide's Official Title and Summary (Opp. at p. 8) is misplaced; a ballot summary is not legally binding. Plaintiff argues the 2025 revision of CACI 3704 purports to "actively direct[] courts to apply the common law Borello right-to-control test... to disputed-status vicarious liability questions." *Id.* CACI instructions are not legally binding authority; there is no legal basis to find Prop. 22 or section 7451 do not apply to automobile tort cases.

Plaintiff

argues the control factors of *S.G. Borello & Sons, Inc v. Department of Industrial Relations* (1989) 48 Cal.3d 341 create triable issues of fact as to whether Lyft directed Sahakyan. The Borello factors are superceded by Prop. 22. See Bus. & Prof. Code §7459(e). Under section 7451, the only test is whether subdivisions (a) through (d) are met. See Bus. & Prof. Code §7451(a)-(d).

It

is undisputed that at the time of the 4/10/23 accident, Sahakyan determined his own schedule. SSAMF 6. Lyft did not require Sahakyan to accept the ride request that led to this incident, nor any other ride request. SSAMF 7. Sahakyan was free to drive for Uber, other TNCs, or any other occupation simultaneously. SSAMF 14. The operative 12/12/22 contract between Lyft and Sahakyan classifies the relationship as one of independent contractor status. SSAMF 8. Bus. & Prof. Code §7451(a)-(d) are satisfied.

There

is no triable issue of fact as to applicability of Prop. 22 or section 7451. The undisputed facts show Sahakyan was an app-based independent contractor. Plaintiff cannot establish an employee or agent relationship between Sahakyan and Lyft as a matter of law. Summary judgment GRANTED.